SUPREME COURT OF CYPRUS

ANNUAL REVIEW

2024

JUDICIAL SERVICE

“Welcome to the first Annual Review of the Supreme Court since its division in July 2023. Our aim is to present to you the work of the Court as well as its main achievements over the past year.”

Katerina Stamatiou
President of the Supreme Court

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JUDICIAL SERVICE

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K9
K8

Supreme Court

Together with its President, the Supreme Court consists of seven Justices.

MISSION

Ensuring fair and impartial justice, as it is defined by the constitution, the institutional rights and liberties, the Laws and the European and International Conventions.

VISION

The continuous upgrade of the mode of operation of justice for an impartial, effective, fast and responsible resolution of differences.

VALUES

- Impartiality
- Equality / Equity
- Integrity
- Reliability
- Efficiency
- Transparency
- Respect of the citizen
- Objectivity
- Independence

MESSAGE FROM THE *President*



Katerina Stamatiou

President
of the Supreme Court

Welcome to the first Annual Review of the Supreme Court ("the Court") since its division in July 2023. Our aim is to present to you the work of the Court as well as its main achievements over the past year.

Undoubtably, the independence of the judiciary, the quality of justice and its efficient administration are fundamental to the rule of law. The judicial branch in its role as one of the three powers of the State and the guardian of fundamental rights and freedoms of citizens, pursues, at all times, the fair, impartial, and timely administration of justice. In our efforts to address the chronic court backlog, we embarked upon the largest reform programme ever attempted in the history of the Republic of Cyprus. Indeed, a very complex, and multi-levelled project.

"In our efforts to address the chronic court backlog, we embarked upon the largest reform programme ever attempted in the history of the Republic of Cyprus."

Since the 1st of July 2023, the judicial map of Cyprus has changed. With the coming into force of the Reform Laws, the Supreme Court of thirteen Justices, was divided into a Supreme Constitutional Court and a Supreme Court, consisting of nine and seven Justices, respectively. The Supreme Court is now a third instance court with jurisdiction to hear criminal and civil cases. Its competence and jurisdictions are laid down in **section 9(3)** of the **Administration of Justice Law of 1964**, L. 33/1964, as amended, and are exercised only with the leave of the Court. At the same time, it adjudicates, at first and second instance, on all prerogative orders of **Article 155.4** of the **Constitution of the Republic**. What's more, the Supreme Court has undertaken the responsibility of determining all civil appeals lodged by the 31.12.2017, in our efforts to eliminate the backlog of civil appeals.

The Supreme Court is responsible for supervising all courts of the Republic and, sits, as the Supreme Council of Judicature ("SCJ") by virtue of **Article 157** of the **Constitution**. Aiming to enhance transparency in judicial appointments and promotions, the SCJ's composition has been enlarged with the participation of the Attorney-General or Deputy Attorney-General, the President or Vice-President of the Cyprus Bar Association and two jurists of a high professional and moral standard. The said participants hold, however, no voting rights. The Supreme Court is also competent to act as a Council for the retirement, dismissal or any matter that relates to the Justices of the Supreme Constitutional Court.

Since July 2023, a Court of Appeal ("CoA") of sixteen judges has been established. One of the judges acts as the President of the CoA. The CoA is now the second instance court of the country and sits in three Divisions: Civil, Criminal and Revisional. An article dedicated to the CoA is included in this report.

With the overriding objective in mind of enabling the court to deal with cases justly and at a proportionate cost, the new Civil Procedure Rules were enacted. They came into force on 1.9.2023. The court must further the overriding objective by actively managing cases. Under this framework, by giving directions and actively managing the case from the outset, cases are determined timely and at a lesser cost.

In our aim to uphold the efficient administration of justice, our priority is centred around seeing the clearing of the backlog of civil cases. This will effectuate the successful application of the new Rules of Civil Procedure.

The use of alternative dispute resolution such as arbitration and mediation are believed to further enhance the efficiency of the justice system. The recent Bill, pending before the House of Representatives, makes mediation compulsory in civil cases under €10.000. We believe that this will help in decreasing the number of cases lodged before the courts and, thus, allowing for civil claims to be determined at a timely manner and at a lesser cost.

On the basis of the Recovery and Resilience Plan, Cyprus has committed to clear all civil cases and appeals pending for more than two years on 31.12.2020 by: (a) 20% by June 2024 and (b) 40% by June 2026. For this purpose, an Action Plan was drafted. A count of all pending cases was conducted. Until the 31.12.2024, the Action Plan has yielded the following clearing results:

(a) 61% of cases lodged by 31.12.2018 has been cleared.
(b) 33% of cases lodged between 1.1.2019 and 30.6.2022 has been cleared.
(c) 46% of cases defined as backlog and lodged until 30.6.2022 has been cleared.

The enactment of **Children in Conflict with the Law, Law of 2021 L. 55(I)/2021** brought about the establishment of Juvenile Courts in every district. Since 2023, children-witnesses in criminal cases may give testimony from the Children's House, a goal achieved with the cooperation of the Organisation Hope for Children.

The Supreme Court, in its effort to drive the country in a new era, so that the Court is able to respond to society's modern demands, undertakes all measures for the reforms to be implemented and concluded successfully and efficiently.

MESSAGE FROM THE

Chief Registrar

Irene Christodoulou

Chief Registrar
Supreme Court

The year 2024 was a defining one for the judicial system of Cyprus, marked by the implementation of critical reforms aimed at improving the administration of justice. At the heart of these changes was the separation of the former Supreme Court into the Supreme Constitutional Court and the Supreme Court. Equally significant was the simultaneous establishment of the Court of Appeal, which now exercises second-instance jurisdiction. This development marked the creation of a three-tier jurisdiction in the Cypriot legal system, enhancing the judicial process at all levels.

This institutional restructuring was primarily designed to address the growing backlog of cases, particularly at the appellate level, which had surged in recent years. The delays in adjudicating cases had caused significant dysfunction within the system, adversely impacting the efficiency of court proceedings. The new structure seeks to alleviate congestion and improve the speed and effectiveness of the administration of justice.

In early 2024, an attempt was made to transition to the electronic e-justice system, intended to replace the temporary i-justice system. However, this effort was unsuccessful, and the "temporary" system continues to serve the needs of the courts. This highlighted the challenges associated with technological upgrades, including the need for adequate infrastructure, specialized personnel, and effective user training. Despite the setback, technology remains a critical component of judicial modernization, with plans for the future implementation of a comprehensive court case management information system still underway.

The new Civil Procedure Rules entered into force on September 1, 2023, with the objective of modernizing civil litigation and providing citizens with quicker and more effective judicial proceedings. These Rules are founded on the principle of "overriding objective," which grants courts enhanced powers to actively manage cases, while imposing an obligation on the parties to cooperate in achieving the timely resolution of disputes.

The introduction of the new Rules increases flexibility and efficiency in case management, promoting the swift administration of justice. Their implementation is expected to create a more efficient and user-friendly judicial system, better aligned with society's needs and citizens' expectations.

“Court and registry staff played a vital role in ensuring the smooth operation of the courts amidst these reforms. Through their dedication and professionalism, they supported the transition, managed the increased workload, and addressed the challenges brought by new procedural and technological standards.”



Throughout 2024, extensive meetings were conducted among various government bodies to discuss and advance the final stage of the judicial reform, focusing on the implementation of the “Court Service” project. These discussions concluded in the development of a preliminary proposal aimed at restructuring, organizing, and enhancing the administrative functioning of the courts.

This proposal was submitted to the Supreme Constitutional Court, the Supreme Court, and all relevant government bodies to foster broader consensus. The implementation of this project is anticipated to enhance coordination, transparency, and efficiency within the Judicial Service, making it more flexible and adaptable to contemporary needs.

Court and registry staff played a vital role in ensuring the smooth operation of the courts amidst these reforms. Through their dedication and professionalism, they supported the transition, managed the increased workload, and addressed the challenges brought by new procedural and technological standards. Their contribution has been instrumental not only in facilitating the adjustment to these changes but also in maintaining public confidence in the Judicial Service despite the difficulties encountered. However, there remains significant scope for improvement, particularly in the areas of continuous staff training, strengthening human resources, and providing modern tools to enhance efficiency and meet the growing demands of contemporary times.

The appraisal for the year 2024, despite the challenges and difficulties faced, highlights the transformative impact of these changes and the progress achieved. These reforms represent a significant step towards a justice system that effectively addresses the needs of the people, reinforces trust in the judiciary, and upholds the fundamental value of Justice.

SUPREME COURT

Judges



ABOVE (from left to right)

Top row:
Charis Malachtos, Yiasemis N. Yiasemis, Ioannis Ioannides, Angelos David

Bottom row:
Lena Demetriadou-Andreou, Katerina Stamatiou, Elena Efrem

Katerina Stamatiou – President

Katerina Stamatiou was born in Limassol in 1960. She graduated from the E Gymnasium Limassol. She read law in London and was called to the Bar at the Gray's Inn. After her return to Cyprus she practiced law in a law firm in Limassol. She served for one term in the committee of the Limassol Bar Association. In 1993 she was appointed District Judge, in 2000 she was promoted to Senior District Judge and in 2004 she was promoted to President of District Court. She served as President of the Assize Court of Paphos and Limassol and Administrative President of the Paphos and Limassol District Courts. On 16.9.2013 she was appointed Judge of the Supreme Court and on 1.7.2023 as the President of the Supreme Court. As of her appointment as a Judge of the Supreme Court, thus far, he presided over the Permanent Civil and Criminal Court of Appeal. As a representative of the Judiciary, she was a member of the Reformatory Policy Committee. In 2023 she was elected Honorary Bencher of Gray's Inn. In the same year she was elected member of the Board of the Network of the Presidents of the Supreme Judicial Courts of the European Union.

She is married and has one daughter and one son.

Yiasemis N. Yiasemis – Justice

Born in Trikomo, Ammochostos, in 1958, where he lived the first years of his life, he later moved to the town of Ammochostos with his family, where he lived until the invasion in 1974. He received his secondary education at the American Academy of Larnaca. After he finished his service in the Cyprus Army, he studied at the University of London from where he attained a Bachelor of Laws (LLB) and a Master of Laws (LLM).

He practised as an advocate from 1985 until 1992, as a member of the Bar Council of Ammochostos and in January 1993 he was appointed as District Judge. As a first instance Judge, he served in all jurisdictions, including that of the Permanent Assize Court and at all levels of the first instance hierarchy. He served for a term as the Vice President of the Cyprus Judges' Association. He was appointed to the Supreme Court of Cyprus in January 2014, where he still serves. He is the President of the Committee of the Civil Procedure Rules, an Arbitrator of the Court of Conciliation and Arbitration within the OSCE and a Member of the Venice Commission.

He is married and has three children.

Charis Malachtos – Justice

Charis Malachtos was born in Limassol-Cyprus in October 1964.

He studied law at the University College London and he was awarded the degree of Bachelor of Laws (LLB). He is also a Barrister of the Lincoln's Inn.

He practised law from 1989 until his appointment as Acting District Judge on the 9th of January 1995.

He was appointed District Judge on the 9th of January 1996. He was promoted to Senior District Judge on the 10th of September 2003 and to President, District Court on the 2nd of April 2010. He served as President of the Paphos Permanent Assize Court and the Limassol Permanent Assize Court and as Administrative President of the District Court of Larnaca-Famagusta and of the District Court of Limassol.

He was appointed Judge of the Supreme Court on the 15th of October 2019.

He speaks Greek and English. He is married and the father of two children.

Lena Demetriadou-Andreou – Justice

She is married and has one daughter.

Academic Qualifications:
Holder of the following degrees and qualifications:
- LL.B. Honors awarded by Essex University, U.K.
- LL.M. Honors on Corporate Law awarded by Cambridge University, U.K.
- The Professional title of Barrister at Law of Gray's Inn.

Brief Professional Background:
- From 1989 until 1990 she was practicing law in the private sector.
- From 1990 until November 1995 she was holding the position of Counsel for the Republic in the Legal Service of the Republic of Cyprus.
- She was appointed in the Judicial Service as acting District Judge on November 1995 and as a District Judge on November 1996. Since that date until February 2004 she was holding the position of District Judge.
- On February 2004 she was promoted to the position of Senior District Judge.
- On October 2012 she was promoted to the position of the President of District Court.
- She served as President of the Assize Court of Nicosia from 25/4/2013 – 9/9/2016.
- She served as Administrative President of the District Court of Larnaca – Famagusta from 6/2/2017 – 9/9/2019 and as Administrative President of the District Court of Nicosia from 10/9/2019 – 6/12/2020.
- From 2001 to 2015 she was an Examiner on the subject of Criminal Procedure, which is one of the subjects in the examinations that are held by the Cyprus Legal Council for acquiring the right to practice as a lawyer in the Republic of Cyprus.
- Since October 2018 she is a Trainer in the Group of Trainers of the National School of Judges.
- Since October 2020 she is a member of the Committee on Judicial Deontology Monitoring
- On 7/12/2020 she was appointed Justice of the Supreme Court.

SUPREME COURT

Judges

Ioannis Ioannides – Justice

Ioannis Ioannides was born in Nicosia – Cyprus in 1963.

He graduated from the Pancyprian Gymnasium and of the Law School of the University of Athens. He practiced Law at Nicosia from 1988. On the 20.11.1995 he was appointed District Judge serving at the District Court of Nicosia. On 15.2.2004 he was appointed Senior District Judge. On 12.11.2012 he was appointed President of District Court. He served as President of the Limassol Permanent Assize Court and as Administrative President of the District Court of Nicosia and of the District Court of Larnaca.

On 7.12.2020 he was appointed Judge of the Supreme Court.

Elena Efrem – Justice

Born in Nicosia in 1969, she is married and a mother of two children.

She studied in the United Kingdom and obtained a Law degree (LL.B Hons.) from the University of East Anglia and a postgraduate degree in Corporate and Commercial Law (LL.M) from King's College, University of London.

Additionally, she acquired the title of Barrister-at-Law from Gray's Inn.

She practiced law from 1992 until 1997 when she was appointed as a District Judge. In 2010, she was promoted to Senior District Judge and in 2015, she became President of the District Court. From 2016 to 2018 she served as the President of the Assize Court of Nicosia. Furthermore, during the judicial years 2021-2022 and 2022-2023, she held the position of Administrative President of the District Courts of Larnaca – Famagusta, and Limassol, respectively. Finally, on July 1, 2023, she was appointed as a Judge of the Supreme Court.

Under the auspices of the European Judicial Training Network, she acquired diplomas in the areas of Judicial Cooperation in Criminal Matters in Europe in 2012 and The Judge in the European Judicial Area in Civil and Commercial Matters in 2014.

In 2015, following training and evaluation, she obtained the title of Trainer in the HELP Program (Human Rights Education for Legal Professionals) of the Council of Europe.

In 2015, she was appointed by the Supreme Court as the representative of the Judiciary of Cyprus in the strategic program of the Council of Europe, "Strengthening National Policies to Stop Sexual Violence Against Children, Training for Prosecutors, Judges and Defence Lawyers on Understanding and Handling Child Victims of Sexual Violence". She is responsible for organizing educational seminars for professionals on the topic of children as vulnerable witnesses. In 2020, she was appointed by the Supreme Court as the Coordinator for Monitoring the European Union's Strategy on the Rights of Victims. Since July 1, 2023, she has been appointed by the Supreme Court as its representative on the Consultative Council of European Judges (CCJE) of the Council of Europe. Since its establishment in 2018, she has been a Trainer at the Cyprus Judicial School.

She has delivered lectures and conducted educational presentations for the Cyprus Legal Service, the Cyprus Police Academy, the Children's House and universities on topics related to child sexual abuse, vulnerable witnesses, forensic interviewing and incest. She has participated in conferences and seminars both in Cyprus and abroad.

Angelos David – Justice

Angelos David was born in Nicosia in 1967. His family originates from Assia, Famagusta, where he spent the early years of his life. In 1985, he graduated from the Pancyprian Gymnasium in Nicosia. After completing his military service, he attended the Aristotle University of Thessaloniki, where he obtained a Law Degree.

He practiced law at a Nicosia law firm until 1999, when he was appointed as an acting District Judge. In 2000, he was appointed District Judge. He was promoted to Senior District Judge in 2010 and to President of the District Court in 2015. As a first-instance judge, he served at all levels and in all jurisdictions, including the Permanent Assize Court. On July 1, 2023, he was appointed as a Judge of the Supreme Court.

He served for several years as a Lecturer-Examiner for the Legal Council (2004–2015).

He was the Chair of the Subcommittee for the drafting of the new Civil Procedure Rules.

He represents the Judiciary in the Association of European Competition Law Judges (AECLJ).

He is a Trainer-Speaker for the Cyprus Judicial Training School.

Since 2020, he has been a member of the Committee for Monitoring Judicial Ethics Principles.

He has participated in various legal conferences both in Cyprus and abroad, as well as in training and educational seminars on various areas of law, delivering lectures and making educational presentations.

He is married and has two children.

CYPRUS JUDICIAL
TRAINING SCHOOL

Cyprus Judicial Training School

Poulia's Building,
Judicial Training School



The Cyprus Judicial Training School plays a pivotal role in promoting justice by providing continuous training, primarily to Judges as well as to court staff, thus enhancing their skills and expertise in crucial legal matters. Through its role in delivering training, it ensures that Judges maintain a robust and evolving professional foundation capable of meeting the demands of modern justice. Additionally, systematic training strengthens judicial knowledge whilst concretely contributing to the preservation and enhancement of judicial independence.

In 2024, the School organized a series of significant training activities, aimed at enhancing and promoting new knowledge and working methods as well as judicial skills, thus substantially contributing to judicial practice. A total of thirteen seminars were delivered, two of which were organised in collaboration with international organizations, specifically the European Union Agency for Asylum (EUAA) and the Embassy of the United States of America. The School also collaborated with esteemed judges such as Mr. Konstantinos Lykourgos, Judge and President of the Third Chamber at the Court of Justice of the European Union, and Ms. Stavroula Ktistaki, Counselor of State and professor at the Department of Public Administration of Panteion University.

In light of their specialized topics and added value to the participants, the following seminars are particularly noteworthy:

Seminar: "Judicial Workshop on Evidence and Credibility Assessment" (July 4-5)

This seminar was organized in collaboration with the European Union Agency for Asylum (EUAA), focusing on the evaluation of evidence in asylum cases, particularly regarding medical reports and documents originating from third countries. The judicial trainers from Ireland and Greece presented methods for assessing the credibility of documents whilst taking into consideration cultural and jurisdictional differences. The seminar was tailored for judges of the Court of Appeal (Administrative Bench) and the Administrative Court for International Protection, highlighting the challenges of delivering justice in complex international protection cases.

Seminar: "U.S. Sentencing Guidelines and Plea Bargaining" (September 19)

In the framework of our ongoing collaboration with the Embassy of the United States of America and the U.S. Department of Justice, the School co-organized the above-mentioned seminar, which focused on the application of the Sentencing Guidelines and the plea bargaining process in the United States. The first part of the seminar provided an overview of the U.S. sentencing framework, followed by a practical exercise using real-life examples. The second part focused on the plea bargaining practice, offering valuable insights for improving efficiency and managing cases effectively. The seminar was attended by all judges of the Assize Courts and judges from Malta.

Seminar on the New Civil Procedure Rules (October 15)

Having marked one year since the entry into force of the new Civil Procedure Rules, the Cyprus Judicial Training School, in collaboration with the Academy of the Law Office of the Republic and the Cyprus Bar Association, organized a seminar, in the form of a panel discussion which aimed at identifying and addressing the challenges and difficulties faced by judges, prosecutors and lawyers during the first year of application of the new Rules. The panelists focused primarily on the procedural difficulties that had arisen or been identified since the Rules came into effect on September 1, 2023 and discussed solutions for their proper and efficient implementation. The seminar provided an excellent opportunity for exchanging views and presenting practical solutions to the challenges stemming from the application of the new Rules. Participants gained valuable insights and practical advice for effectively managing these challenges.

Seminar: "Reference for Preliminary Ruling to the Court of Justice of the European Union and Unfair Terms" (October 30-31)

Held over a period of two days, October 30-31, this seminar focused on the procedure for references for preliminary rulings to the Court of Justice of the European Union (CJEU) and unfair terms in consumer contracts. It was organized in collaboration with Mr. Konstantinos Lykourgos, Judge and President of the Third Chamber at the CJEU, and included practical exercises and case studies on the submission of questions to the CJEU and the legal framework regarding unfair terms under Council Directive 93/13/EEC. The participant judges of courts of first instance and legal officers of the two Supreme Courts, had the opportunity to analyze and deepen their understanding on the application of EU law in national procedures. The Judges of the Court of Appeal also received training, which focused on the analysis of case studies based on judgments of the CJEU and concluded with a round table discussion.



LEFT:

The Director and staff of the Cyprus Judicial Training School, with the former Director of the School, Mr. George Erotocritou

BELOW:

Mr. Konstantinos Lykourgos, Judge and President of the Third Chamber at the Court of Justice of the European Union, along with his associates during their presentation at the Seminar held on October 30-31





LEFT:

The Director of the School, Ms. Rea Limnatitou and Ms. Julie D. Fisher, Ambassador of the United States Embassy in Cyprus, during her visit at the Seminar co-organized with the U.S. Embassy and the U.S. Department of Justice

Additionally, for the second time since October 2017, the Cyprus Judicial Training School organized the three-day the training program ***"Judicial Training for Trainers – Judgecraft Training"*** aiming at training and preparing the School's new generation of trainers. For the design and delivery of this program, the School collaborated once again with Professor Jeremy Cooper, former Judge and former Deputy Director of the Judicial College of England, and Ms. Michelle Austin, Principal Occupational Psychologist at the Judicial Office of England and Wales.

Two seminars were delivered as part of the initial training for new judges, whilst eleven seminars were implemented under the continuous training program for judges and court staff. With regards to 2024, a total of 287 participations in training activities were recorded for Judges, 22 for Legal Officers, and 20 for Court Registrars

A significant portion of the costs for the implantation of training activities was covered by the Recovery and Resilience Plan, in which the Judicial Training School participates for the period 2022–2025. The School's commitment to the Plan includes training of at least 110 Judges on the new Civil Procedure Rules, as well as on other judicial skills.

The Cyprus Judicial Training School consistently supports the work of Cypriot judges, equipping them with the knowledge and skills needed to meet the challenges of modern justice. Through its seminars and educational initiatives, the School fosters an environment of continuous learning and reinforces the values of the rule of law. This ensures that judges remain impartial and well-prepared to safeguard citizens' rights and the transparency of the judicial system. In doing so, the School strengthens public trust in the institutions and the administration of justice.

Cyprus Judicial Training School
20/12/2024

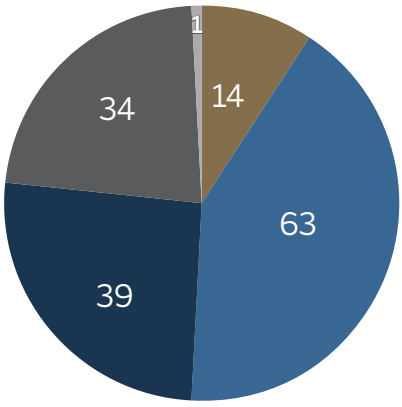
Statistics 2024

Judges by Gender

151
JUDGES

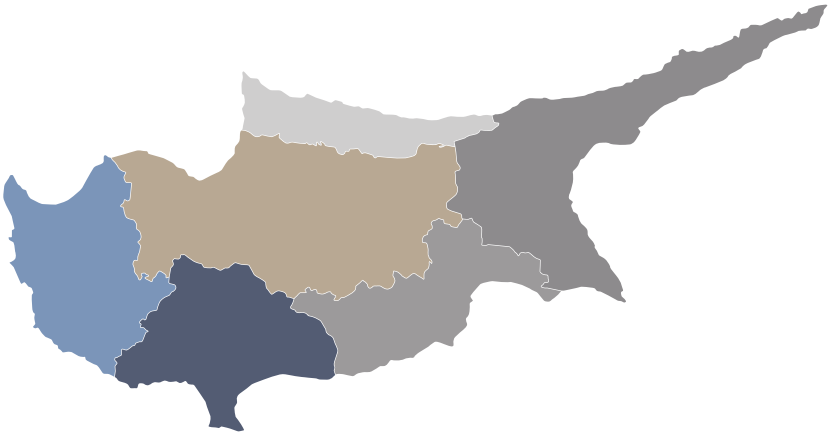
COURT			
SUPREME COURT	4	3	7
COURT OF APPEAL	9	5	14
ADMINISTRATIVE COURT	3	4	7
INTERNATIONAL PROTECTION ADMINISTRATIVE COURT	3	7	10
DISTRICT COURTS	32	43	75
ASSIZE COURTS	12	9	21
FAMILY COURTS	2	7	9
INDUSTRIAL DISPUTES TRIBUNAL	2	2	4
RENT CONTROL TRIBUNALS	1	2	3
MILITARY COURT	1	0	1
TOTAL	**69**	**82**	**151**

Judges by Age



COURT	<35	35-44	45-54	55-64	>65
SUPREME COURT	0	0	0	6	1
COURT OF APPEAL	0	0	4	10	0
ADMINISTRATIVE COURT	0	3	4	0	0
INTERNATIONAL PROTECTION ADMINISTRATIVE COURT	0	8	1	1	0
DISTRICT COURTS	14	46	25	11	0
FAMILY COURTS	0	5	1	3	0
INDUSTRIAL DISPUTES TRIBUNAL	0	1	2	1	0
RENT CONTROL TRIBUNALS	0	0	2	1	0
MILITARY COURT	0	0	0	1	0
TOTAL	**14**	**63**	**39**	**34**	**1**

Judges by District and Courts



NICOSIA DISTRICT COURTS			
SUPREME COURT	4	3	7
COURT OF APPEAL	9	5	14
ADMINISTRATIVE COURT	3	4	7
INTERNATIONAL PROTECTION ADMINISTRATIVE COURT	3	7	10
MILITARY COURT	1	0	1
TOTAL	**20**	**19**	**38**

FAMILY COURTS			
NICOSIA	0	3	3
LIMASSOL	1	2	3
LARNACA/FAMAGUSTA	1	1	2
PAPHOS	0	1	1
TOTAL	**2**	**7**	**9**

RENT CONTROL TRIBUNALS			
NICOSIA	0	1	1
LIMASSOL	1	0	1
LARNACA/FAMAGUSTA/PAPHOS	0	1	1
TOTAL	**1**	**2**	**3**

INDUSTRIAL DISPUTES TRIBUNAL			
NICOSIA	1	0	1
LIMASSOL/PAPHOS	1	1	2
LARNACA	0	1	1
TOTAL	**2**	**2**	**4**

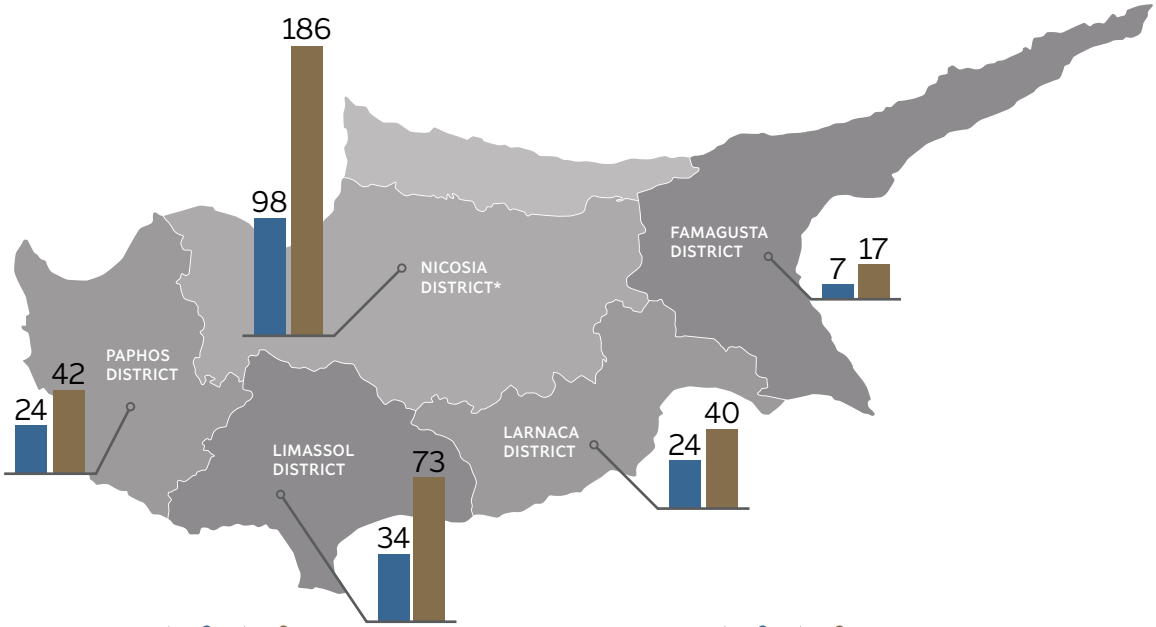
DISTRICT COURTS AND ASSIZE COURTS				PRESIDENTS OF DISTRICT COURTS	SENIOR DISTRICT JUDGES	DISTRICT JUDGES
NICOSIA	14	19	33	9	5	19
LIMASSOL	13	14	27	7	5	15
LARNACA	7	7	14	3	2	9
FAMAGUSTA	3	5	8	2	2	4
PAPHOS	7	7	14	3	3	8
TOTAL	**44**	**52**	**96**	**24**	**17**	**55**

Courts Staff by Position



POSITION			
CHIEF REGISTRAR	0	1	1
ASSISTANT CHIEF REGISTRAR	0	1	1
LEGAL OFFICERS	1	8	9
REGISTRARS	9	24	33
ADMINISTRATIVE OFFICERS	1	15	16
STENOGRAPHERS	0	93	93
BAILIFFS	30	13	43
ACCOUNTING OFFICERS	0	4	4
LIBRARIANS	0	4	4
INTERPRETERS	1	2	3
SECRETARIAL STAFF	21	141	162
MILITARY ASSISTANT	0	1	1
CLEANERS	4	40	44
COURT MESSENGERS	119	12	131
TOTAL	**186**	**359**	**545**

Courts Staff by District



* NICOSIA DISTRICT		
SUPREME COURT	18	47
COURT OF APPEAL	9	18
ADMINISTRATIVE COURT	6	13
INTERNATIONAL PROTECTION ADMINISTRATIVE COURT	13	38
NICOSIA DISTRICT COURT	43	57

FAMILY COURT	4	7
INDUSTRIAL DISPUTES TRIBUNAL	4	2
RENT CONTROL TRIBUNAL	1	2
MILITARY COURT	0	2
TOTAL	**98**	**186**

Supreme Court Decisions

A FIRST INSTANCE

- **174** PREROGATIVE ORDERS
- **8** LEGAL AID APPLICATIONS
- **2** CRIMINAL APPLICATIONS
- **2** ADMIRALTY CLAIMS

B SECOND INSTANCE/ IN PLENARY

- **141** CIVIL APPEALS
- **1** ADMIRALTY APPEALS
- **2** ELECTORAL PETITIONS
- **23** PREROGATIVE ORDERS
- **4** RECUSAL REQUESTS
- **1** CRIMINAL APPLICATIONS
- **1** AMENDMENT OF PLEEDING
- **2** REINSTATEMENT/ REOPENING

C THIRD INSTANCE JURISDICTION

- **28** 9(3)(γ) N.33/1964
- **1** 9(3)(ε) N.33/1964

Status of Civil and Criminal Applications



CIVIL **CRIMINAL**

Jurisdiction according to articles 9(3)(b), 9(3)(c), 9(3)(d) and 9(3)(e) of Law 33/1964

JURISDICTIONS	PENDING FROM LAST YEAR	FILED DURING 2024	COMPLETED CASES	PENDING CASES
Jurisdiction according to article 9(3)(b)	-	-	-	-
Jurisdiction according to article 9(3)(c)	7	46	31	22
Jurisdiction according to article 9(3)(d)	-	-	-	-
Jurisdiction according to article 9(3)(e)	0	5	5	0
TOTAL	7	51	36	22

Court of *Appeal*



"The Court of Appeal is largely considered a court of last instance."

Yiasemis N. Yiasemis

Justice
Supreme Court

The Court of Appeal is the latest court established within the Judicial system of the Republic of Cyprus. It was established by the Administration of Justice (Miscellaneous Provisions) Law of 1964, L.33/1964, as amended, and in particular by the amending Law 145(I)/2022. It assumed its duties on 1st July, 2023. The new Court of Appeal is a Court of second instance, having jurisdiction to hear appeals against judgements of first instance courts. For recourse to this Court there is no requirement for a permission to appeal. Nonetheless, any questions of law which arise from its decisions can be adjudicated upon, at third instance, after acquiring permission to do so on specific grounds provided for in section 9 of said Law.

The sixteen Judges of the Court of Appeal, including its President, exercise the aforesaid jurisdiction in all fields of law: Civil, Criminal and Administrative. Usually, they sit in chambers of three. Nevertheless, under the express provision of section 11(5) of the said Law, a single judge may adjudicate on an interim application made in an appeal or on an appeal against an interim application, excluding an appeal concerning interlocutory orders.

The routine handling of first instance disputes by the Court of Appeal, requires it to directly deal with disputes of unsatisfied parties from courts of first instance. Hence, the Judges of the Court of Appeal, must be knowledgeable and remain up to date with applicable, substantive and procedural law. In this respect, the Court of Appeal, holds a special status in the legal justice system of the Republic of Cyprus. Accordingly, it stands out as a prominent court, as it makes final determination of facts, while its decisions bind lower courts, on matters of law. Thus, the Court of Appeal is largely considered a court of last instance.

The Court of Appeal operates on its own premises, though these are not a purpose-built courthouse as they ought to be. Irrespectively, the Court is run by a competent workforce who contribute to the appropriate daily functioning of the Court of Appeal. The State must address the needs of the Court regarding premises and operations, to ensure its continued efficiency. To do so, would undoubtedly enable its Judges to focus on their judicial tasks, without extraneous interferences.

REMOTE HEARINGS

A new era in the modernization of Court proceedings?

Lena Demetriadou-Andreou

Justice
Supreme Court

Modern technology is changing the way we live our daily lives at a rate that has never been seen before. The integration of digital tools has become inevitable in all fields, including business, education, healthcare, and social interactions. The COVID-19 pandemic acted as a significant catalyst, compelling legal institutions and courts worldwide to implement new protocols and advance through technology. The introduction of teleconferencing has been one of the most significant changes.

I would like to briefly discuss the possible use of teleconferencing in our legal system, the responsibilities and expectations of the stakeholders, the difficulties, and the ways in which the legal community may work together to continue ahead/or to move forward.

There is a growing trend towards the use of teleconferencing in legal proceedings. It has already become a standard procedure in some countries. But where exactly does it fit in our legal system?

Initially, teleconferencing can be used at various stages of civil cases, administrative cases, before the Court of Appeal or even in proceedings before the Supreme Court. It would be especially helpful, for instance, in non-evidentiary hearings, case management sessions, first appearances, addresses, and non-contested applications or requests. No longer would there be a need for in-person court appearances because judges could manage scheduling cases online. This saves time. Teleconferencing may even go as far as complete cases in simpler matters, small claims or with the permission of both sides, especially where oral evidence is limited.

Furthermore, teleconferencing can significantly change cross-border disputes by enabling litigants or witnesses from other countries to attend proceedings virtually. This lowers expenses and lessens the administrative strain that frequently causes procedures to be delayed.

Of course, the participation of judges, lawyers, court staff, and litigants is essential to the effectiveness of teleconferencing. It is required to comply with procedural regulations, acquire new skills, and maintain the same professionalism and standards.

It is the duty of judges to guarantee that the virtual world abides by the values of equity and integrity. The integrity of the courtrooms must be upheld in digital settings. Judges and court staff have to be vigilant to make sure that there are no technical disruptions that compromise the proceedings and that each party is given an equal chance to present their case without undermining the process.

Lawyers need to be proactive as well. In addition to their legal obligations as advocates, they will need to develop their technological skills to ensure that they can effectively participate in virtual hearings. It would be their duty to ensure that they are aware of what is expected of them in a distant environment and to prepare their clients accordingly for the virtual experience.

The security, usability, and functionality of the digital infrastructure must be guaranteed by the competent governmental authorities. IT services are essential to the seamless operation of remote hearings since they shall ensure that the proceedings run smoothly.

The expectations for litigants and witnesses could change, but they are nonetheless just as significant. When presenting themselves in court, whether in person or virtually, they need to become acquainted with the technology being utilised and maintain their caution.

The ability of teleconferencing to expedite judicial proceedings is one of its most enticing promises. There is no denying the advantages in terms of time savings. Significantly cutting down on travel, clearing the courtrooms, and reducing housing needs for the Courts can all help decrease time in resolving cases.

In a traditional context, delays are frequently caused by logistical challenges, scheduling problems, and distances. For these problems, teleconferencing provides a practical solution. We can shorten the time it takes to hear cases by allowing remote participation, which will ultimately result in quicker resolutions.

"It is the duty of judges to guarantee that the virtual world abides by the values of equity and integrity."



However, justice shouldn't be compromised as a result of this acceleration. The difficulty is in striking a balance between expediency and the preservation of due process, as well as making sure that the digital instruments we employ are applied in a way that preserves the integrity of the legal procedures.

The use of teleconferencing presents certain difficulties. Fairness and accessibility are issues, since maybe some lawyers, witnesses or litigants lack access to reliable internet connections or the required technologies.

The problem of security and confidentiality presents another challenge. By design, courts are secure spaces. Moving court sessions online, creates the possibility of unapproved recordings, data security issues, and confidentiality complications.

And then, there's the issue of technical problems. Unexpected disruptions can happen to even the best-prepared participants–whether it is a bad internet connection, a software glitch, or user error. Such problems could impede proceedings and lower the standard of justice administered.

Reliable technology is necessary for teleconferencing to be successful. Courts need to make investments in dependable platforms that protect privacy and security, and offer crystal-clear audio and video.

Teleconferencing platform should be easy to use and available to all parties involved, including novice litigants and (experienced) seasoned judges.

Finally, we need to address the necessity of regulating the procedure. There should be definite, uniform guidelines governing the use of teleconferencing.

In order to guarantee that technology satisfies the requisite requirements for security and accessibility, competent authorities must also establish standards for the technology employed. Procedures must also be set up to settle disagreements resulting from technological malfunctions or questions regarding the impartiality of virtual proceedings.

As a final remark, it is worth emphasising that the Supreme Court has recognised the relevance of teleconferencing technology. More than two years ago, the Supreme Court addressed the rising need to modernise court proceedings by directing the Deputy Ministry of Research, Innovation, and Digital Policy to establish a teleconferencing platform in all courts. This move demonstrates a clear recognition of the legal system's growing demands and the essential role technology plays in ensuring that justice is both quick and accessible to all, particularly in an increasingly digital age.

In conclusion, teleconferencing presents a viable route towards more effective and accessible justice; however, it is our responsibility to make sure that this innovation advances fairness and integrity rather than compromising them. As we negotiate this change, let's embrace the opportunity technology presents while maintaining the fundamental principles of our legal system.

EXPLORING THE EUROPEAN UNION ARTIFICIAL INTELLIGENCE ACT:

Transforming Judicial Systems

Andreas Y. Tserkezos

Registrar
Supreme Court



The Artificial Intelligence Act (EU) 2024/1689 (AI Act), which entered into force on August 1, 2024, signifies a landmark initiative by the European Union to create a unified legal framework for artificial intelligence. By tackling the risks that AI poses to fundamental rights, safety, and democratic values, this Regulation seeks to establish the EU as a global leader in the development of reliable AI. This legislation represents a major advancement in regulating emerging technologies while upholding societal principles.

Judicial systems, as pillars of democratic governance, find themselves at the intersection of artificial intelligence advancements and established legal practices. The AI Act's risk-based approach, transparency requirements, and governance frameworks is set to transform the incorporation of AI into judicial procedures. Nonetheless, this Regulation brings forth significant concerns regarding the need to maintain the values of fairness and justice, which are fundamental to the rule of law.

The AI Act presents a progressive definition of AI and categorizes systems according to the potential risks they pose to users and society. AI systems deemed high-risk (Article 6), especially those employed in vital areas such as healthcare, law enforcement, administration of justice, and public administration, are subject to the strictest regulations. These regulations include comprehensive risk assessment processes, guarantees regarding data quality, and provisions for continuous human supervision.

The Regulation (Article 5) prohibits AI systems that are considered to present unacceptable risks, including those that facilitate social scoring or real-time biometric identification in public areas, with limited exceptions. Furthermore, general-purpose AI systems, which frequently act as foundational models for other uses, are required to adhere to transparency standards to ensure safety and accountability.

The implementation of the AI Act relies on governance structures. Each Member State must appoint competent authorities to monitor compliance, while the European Artificial Intelligence Board plays a critical role in ensuring coordination and uniformity throughout the EU. These mechanisms guarantee that the Regulation adapts to technological progress while promoting legal certainty.

The judiciary is positioned to benefit from AI's revolutionary promise while addressing the challenges it introduces. The AI Act's emphasis on high-risk

"The judiciary is positioned to benefit from AI's revolutionary promise while addressing the challenges it introduces."

systems encompasses various applications essential to legal procedures, such as automated document analysis, case management, and decision-support tools. These applications must meet strict transparency and auditability standards, allowing them to be monitored and evaluated for fairness and accuracy.

One of the regulation's most important contributions is its emphasis on human oversight, especially for high-risk systems. This aligns with the importance on judicial discretion and individual justice. While artificial intelligence might improve efficiency by automating repetitive processes like document review or precedent retrieval, it cannot replace the complex reasoning required for legal decisions. The Regulation protects against over-reliance on AI by guaranteeing that judges and legal professionals retain the final responsibility for their decisions.

Artificial intelligence has the potential to modernize judicial systems by minimizing inefficiencies, increasing consistency, and improving access to justice. AI can automate routine operations like case management and document analysis, lowering administrative burdens and allowing judges to focus on substantive issues. For example, AI-powered applications can categorize case files, summarize documents, prioritize urgent cases, and analyse documents to locate pertinent materials. It can also enhance predictive modeling to help allocate resources more efficiently by identifying trends or bottlenecks and ensure faster resolution of cases and reducing backlog. These applications are consistent with the AI Act's emphasis on transparency, accountability, and human oversight in high-risk systems, ensuring that AI serves as a tool to support, not to replace, legal professionals.

AI can also help improve access to justice by offering tools such as chatbots and virtual assistants that can guide citizens through legal procedures. Predictive analytics can also evaluate patterns in previous judgements, helping to ensure consistency in decision-making while preserving judges' discretion. AI technologies in the courtroom can improve efficiency and accessibility by automating procedures such as real-time transcription and translation. By mitigating biases and ensuring that data is representative, AI can also contribute to fairness and equality.

However, incorporating AI into judicial systems is not without challenges. The need for high-quality data, along with the duty to guarantee AI systems are explainable, puts significant demands on legal institutions. Courts must develop the technical infrastructure and skills required to properly use AI systems while adhering to strict data privacy standards.

Concerns regarding bias and discrimination are also being addressed by the Regulation. The AI Act offers methods to reduce the risks of systemic bias by ensuring representative data sets and ongoing monitoring for discriminatory outcomes. This is a chance for legal systems to increase uniformity in decision-making.

The AI Act establishes a legal framework for the ethical and effective use of artificial intelligence within the European Union. It provides a method for judicial systems to harness on AI's potential while upholding the principles of fairness, transparency, and accountability. By emphasizing human oversight and the significance of explainable AI, the legislation fortifies the judiciary's position as a defender of justice in an age of technological transition.

However, for the AI Act to be implemented successfully in judicial systems, serious planning, investment, and stakeholder participation would be essential. Addressing practical issues like data accessibility and system compatibility will be critical to ensuring that AI works as a tool to strengthen the rule of law. As the regulation comes into full effect, it will yield useful lessons not only for judicial institutions, but also for the broader integration of AI across society.

Notable Decisions 2024 OF THE SUPREME COURT

14 MAY 2024

Civil Appeal No. 130/15 Hashem v. Attorney General
14.5.24

The appellant had been convicted of the offence of illegal employment of a foreigner and was sentenced to three months imprisonment. His conviction was overturned on appeal and he was released after serving 46 days in prison. He applied to the Director General of the Ministry of Finance under the **Appeals for Overturning Imprisonment Sentences (Compensation) Law** for compensation. The appellant rejected the amount of 1500 euros offered to him and filed a claim against the Attorney General.

The court of first instance awarded him the amount of 1500 euros as fair and reasonable compensation.

The appellant contended that the first instance court erroneously concluded that the sole basis of the claim was the law while there was also a claim for deprivation of liberty. The appellant, with another ground of appeal, claimed that the court erroneously awarded the costs of the first instance proceedings against him and interest from the date of the decision instead of from the date of the filing of the action.

It was held that:

In the writ of summons there was no other basis of claim, other than the claim based on the Law.

Article 5 of the Law does not provide the beneficiary with the opportunity to request compensation for loss of income and additional compensation for deprivation of liberty. The compensation proposed by the Director General was the maximum that the appellant could receive and the trial court correctly determined as fair and reasonable compensation the amount determined by the director.

The Court decided that the trial court dealt with the present case as if it was a case of payment into the Court where, as a rule, the plaintiff is deprived of costs when he recovers a lower amount than that deposited.

No payment had been made to the Court and the amount was not tied up, nor at the disposal of the trial court. Therefore the trial court did not properly exercise its discretion on the issue of costs and interest.

The Supreme Court ordered that each party bears its own costs of the action and awarded interest from the date of the filing of the action.

The appeal was partially allowed.

31 MAY 2024

Civil Appeal No. 32/2015, Cosmos Insurance Public Ltd v. Admitos Pitsillides
31.5.2024

The appeal is directed against the dismissal of the appellants' action by which they claimed from the respondent any amount that would have been awarded in favour of the plaintiffs in the actions D.C. Limassol No. 3330/08 and 1216/08, registered by the driver of a vehicle involved and the owner of the vehicle respectively, claiming damages after a fatal road accident, for which the deceased 19-year-old driver of the respondent's insured vehicle has been solely responsible. The driver was driving under the influence of alcohol and was excluded from insurance coverage. Those actions had been dismissed after the filing of the present action, following the out-of-court settlement/payment by the insurance company of the appellants to the plaintiffs respectively of agreed amounts of damages.

The Court of First Instance held that the remedies sought were premature, because at the stage of registration of the Claim, no actionable right of the Plaintiffs/Appellants against the Defendant/Respondent had arisen and crystallized.

It also held that, given that the aforementioned Actions had been dismissed as out of court settled without court decisions, the provisions of **Article 14 of the Motor Vehicles (Third Party Liability Insurance) Law of 2000, Law 96(I)/2000 (the Law)** could not be activated, so that the insurer, i.e. the Appellants, to be entitled to recover the amount paid.

The appellants appealed these judgments, arguing that they had filed an action declaring their right to seek relief from the Respondent on the basis of the Act and the Insurance Policy. They argued that they were entitled to a binding declaratory decision regardless of ancillary treatment, pursuant to Article 41 of the Courts Law, Law 14/1960.

The Supreme Court dismissed the appeal, repeated the principles governing the Court's discretionary power to issue declaratory and/or declaratory relief[1], and stressed that:

1. In order to issue a declaratory/recognision decision, the question before the Court should be real and not hypothetic or abstract. There is no admissable action for amounts that may become payable in the future.

2. The relevant term of the policy provided **that if the insurers were forced to pay any amount under the provisions of the Law, which they would not be obliged to pay under the Terms of the Policy,** then they were entitled to claim recovery of this amount from the insured and/or the driver. Article 14 of the Act establishes the insurer's obligation to pay compensation in relation to liability for death, bodily injury or damage, regardless of exclusions in the insurance document, **when a court decision is made** in relation to liability required to be covered by an insurance policy.

3. The recovery of the amount by the insured is carried out either on the basis of the Insurance Policy or on the basis of the provisions of the Law, **in case the insurers are forced to pay any amount.** In the present case, the Appellants were not required to pay any amount at the time when the impugned suit was filed and the out-of-court settlement of the claims occurred after the commencement of the Action, which was justifiably considered to be premature.

4. The appellants had paid the plaintiffs amounts agreed in an out-of-court settlement. In order to be entitled to recovery of an amount paid in relation to the liability of the driver of the insured vehicle that was not covered by the insurance document, **a court decision[2] was required** in relation to the liability towards a third party covered by the insurance policy **(subsection (1) of Article 14 of the Law)** which in this case was not issued, since the actions had been dismissed.

[1] PROGRESSIVE INSURANCE CO LIMITED v. Louca Pittakou a.o., Civil Appeal No. 377/2014, 22/5/2023, Rolls – Royce PLL v. Unite the Union (2009) EWCA Civ. 387
[2] Laiki Insurance Ltd v. Vlachou a.o., Civil Appeal No. 194/2013, 25/10/2019

02
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2024

Application No. 5/2023, Markou Kouzali (Deceased, through his estate administrator, Giovanni Kouzali) v. Gordian Holdings Limited – 2.7.2024

The Supreme Court had before it an application for the amendment of the main application, which was filed pursuant to **section 9(3)(c) of the Administration of Justice (Miscellaneous Provisions) Law of 1964, (L.33/1964)**, as amended.

It had been pointed out to the applicant's side that the content of the main application did not comply with the requirements of **Part 2 of the Procedural Rules of the Supreme Court of 2023**, which provides for the form and content of the application for leave, pursuant to the aforementioned provision of the Law, as there was no reference to a ground on the basis of which the examination of the legal issues arising from the Court of Appeal's decision was requested.

The requested amendments were recorded in the body of the application, and no bad faith was found on the part of the latter or his lawyer, especially in understanding the pressing need to define the legal framework within which the alleged legal issues had to be examined.

The Court referred to the innovative in section **9(3)(c) of the Law**, third-degree jurisdiction of the Supreme Court, and the novel Regulations which support the procedure in relation to it.

The Court also referred to **Rule 8(1)** according to which "Any failure by a party to comply with the Rules does not render the proceedings invalid or voidable."

The Supreme Court added that, beyond the directions that the Court has authority to give as it "considers appropriate, taking into account the seriousness of the non-compliance and generally the circumstances of the case," **(Rule 8(2))**, there is also the possibility, under **Rule 33**, for the filing of an application for the purpose of amending a document filed in the context of proceedings before it. In this case, the applicant sought the assistance of this specific regulation to amend the main application. In this context the Court observed the following:

"However, more importantly, regarding the purpose of the Regulations, is the provision in Rule.3. According to this, the Court, in exercising its power in relation to any proceedings before it, takes into account that, "The overriding objective of the Regulations is to ensure the right of access to the Court and that the Court will operate fairly and efficiently." It also takes into account that in every case "...it must interpret and apply the Regulations with the aim of ensuring access to it in a fair and efficient manner and to avoid unnecessary procedures in relation to procedural matters," (Rule 3). This specific Regulation, which is in the spirit of Part 1 (Overriding Objective) of the new Civil Procedure Rules, directs the Court away from formalistic approaches and instead focuses the procedure on examining, in every case, its essence, bypassing deliberate procedural complexities and delaying tactics. The purpose of granting permission, if achieved, will be the determination of the law as the provision of section 9(3)(c) of the Law stipulates."

It was deemed that the application for amendment for the purpose of determining the reason or reasons on which the raised legal issues would be examined was justified. Thus, the overriding objective of ensuring the applicant's right of access to the Court was satisfied.

08 JUL 2024

Civil application No. 23/24 Re the application of Charalambos Demosthenous 8.7.24

The applicant filled an application for an order of certiorari, to quash an order for disclosure of telecommunications data.

The order granted access to telecommunications data relating to the applicant's mobile phones for the purposes of investigating the offence of premeditated murder.

Both the application for the order and the contested order were based on **articles 4(1)-(4) of the Retention of Telecommunications Data for the Purpose of Investigating Serious Criminal Offences Law 183(I)/2007, articles 100(1) and 101 of the Regulation of Electronic Communications and Postal Services Law, L.112(I)/2004.f Law 112(I)/2004**.

Article 4 of law 112(2004) empowers the court to issue an order for access to data relating to the investigation of a serious criminal offence.

The applicant contended that the articles of the Law on which the order was based had been declared by the Plenary Session of the Supreme Court in **the Hatzioannou case**[1] to be contrary to Directive 2002/58, therefore the order was in violation of the Constitution and the principle of proportionality.

The Supreme Court proceeded to analyse the Cypriot and European case law regarding the retention of telecommunications data. It noted that although the ground of appeal concerns Law 183(I)2007, this does not exclude the reference and engagement with Law 112(I)/2004, provided that it is related to and affects the legality of the contested order.

The Supreme Court, rejecting the application, stated that:

In the **Hatzioannou case**, the plenary session limited itself to articles 3 and 6-10 concerning data retention and did not decide on the unconstitutionality of article 4, which remained in force.

Referring to the ECJ decision in **case C-470/21 La Quadrature du Net, 30.4.24**, where it was held that access to data which is retained in a general and non-discriminatory manner is possible, provided that it is retained in accordance with the provisions of Directive 2002/58/EC, it proceeded to examine whether such compliance existed in the present case.

It noted that Law 112(I)/2004 regulates the retention period of data for commercial purposes, thus making it lawful to retain data on movement for a period of 6 months as permitted by Directive 2002/58.

It concluded that the requested data related to a period of time within the six months, a period during which they were lawfully retained under Law 112(I)/2004. Therefore, the contested order related to data which were lawfully retained by the providers within the period of time that was necessary for commercial purposes.

The application was dismissed.

[1] Civil applications no. 97/2018 a.o. 27.10.21

24 SEP 2024

Civil Appeal No. 311/15 Republic of Cyprus v. Stylianou a.o.
24.9.2024

The appellants filled an appeal against a first-instance court decision by which they were ordered, as the Compensating Authority, to pay compensation of €123,000 plus interest.

According to the facts, it had been imposed as a condition on the building permits issued in 1978 and 1982 that the compulsory acquired property be granted as a public road.

With the first ground of appeal, the appellants contended that the first-instance court wrongly calculated the compensation based on the value per square meter of the property. The appellants argued that the expropriated area was incorrectly considered as a binding street plan since it was a condition of the building permits to be granted as a public road.

With the second ground of appeal the appellants contented that the first instance court wrongly concluded that the property had suffered a detrimental effect.

The Supreme Court had extensively analysed the case law regarding the payment of compensation in the event of expropriation when restrictions have been imposed.

The Supreme Court allowed the first ground of appeal stating that the Respondents had proceeded to implement the building permits, which they themselves had requested and received, and the conditions that had been set for the purposes of developing their plot, without any dispute. They could not, therefore, in the context of awarding compensation for the expropriation, claim compensation for this concession that was made in accordance with the terms of the building permits.

As for the second ground of appeal, it decided that the first instance court's conclusion regarding the infliction of a detrimental effect was contradictory. While it had rejected the report of the respondents' expert evaluator referring to a detrimental effect because it had not been explained how the relevant percentage was determined, it proceeded to take into account this position, that it had previously rejected, in order to conclude that hardship had been caused.

The Supreme Court further noted that the evaluator's report could not be considered adequate enough so that it would enable the First Instance Court to find that a substantial reduction and detrimental effect had been inflicted on the value of the property remaining after the removal of the expropriated part.

It concluded that the Court of First Instance had wrongly and without sufficient evidence came to the conclusion that the expropriation had caused a detrimental effect, hardship, on the property in question.

The appeal was allowed.

23 OCT 2024

Civil Appeal No. 10/2023
23.10.2024

REGARDING THE APPLICATION OF FRESNO CAPITAL CORP., FROM BELIZE, FOR THE ISSUANCE OF A PREROGATIVE ORDER OF MANDAMUS

REGARDING THE OMISSION AND/OR REFUSAL OF THE REGISTRAR OF COMPANIES TO PERFORM HER DUTIES IN ACCORDANCE WITH THE COMPANIES LAW, CAP. 113, AND TO PROCESS THE APPLICATION DATED 01.06.2022, FILED BY THE APPLICANT FOR ITS REGISTRATION AS CONTINUING IN THE REPUBLIC OF CYPRUS.

The appeal concerns the rejection of the issuance of a prerogative order of mandamus regarding the refusal of the Registrar of Companies to register the applicant as continuing in the Republic of Cyprus on the basis of **Article 354B of the Companies Law, Cap. 113**. The Registrar had refused to approve the application of the applicant under **Section 345I of Cap. 113**, due to the order in force freezing worldwide the assets of two natural persons, who are the shareholders of the Applicant.

The court of first instance decided that the matter falls within the sphere of public law and therefore the legality of the Registrar's decision is reviewed by the Administrative Court, pursuant to Article 146 of the Constitution.

The appellant argued that the said decision of the Registrar falls within the sphere of private law.

The Supreme Court, dismissing the appeal, said:

1. For the purposes of distinction, the essential and decisive criterion is the real nature of the act in combination with the objective pursued. The sphere of public law concerns decisions aimed at promoting issues of general interest of the public or a specific section of it. The crucial question is not whether the underlying legislation on the basis of which a decision is taken serves a public purpose, but whether that act serves such a purpose.

2. The present case concerns the registration of a foreign company under **Cap. 113** as continuing in the Republic and does not basically affect only the company and its creditors, but amounts to the registration of the Appellant as a new legal entity in Cyprus to be governed by the domestic law. The establishment and registration of a company based in Cyprus falls within the sphere of public law.

3. Besides, any obligations, rights, and powers of a company that changes its registered office, undoubtedly concern its creditors and the public. The decision of the Registrar here was taken in the public interest and falls within the sphere of Public Law, since there was a risk, as an economic entity because of the freezing order of the shares held in it by natural persons.

4. In accordance with **European Directive (EU) 2017/1132 of the European Parliament and of the Council of 14 June 2017** and case law of the CJEU, freedom of establishment may be restricted on grounds of public interest, such as preventing abuse or fraudulent conduct, or protecting the interests of creditors, minority members, employees or tax authorities.

5. Therefore, the Registrar's decision to refuse the application for transfer of the Appellant as continuing entity to the Republic, constitutes an exercise of public authority and as such could not be examined within the prerogative jurisdiction of the Supreme Court.

21
NOV
2024

Application number 4/2023 In re Sofroniou Christou Hadjisofroniou 21.11.2024

With a **section 9(3)(c)** application made under the **Administration of Justice Law, L. 33/1964**, the Supreme Court was asked to decide on a point of law arising out of a Court of Appeal judgment by which the appeal of the Appellant – Applicant was dismissed.

The Appellant – Applicant brought an appeal before the Court of Appeal against a first instance decision whereby his Application to set aside an intended sale of immovable property based on a statutory Type IA notice made under the **Transfer and Mortgage of Immovable Property Law of 1965 to (No.11) 2015** ("the Law") was denied.

The appellate court dismissed his appeal on the ground that the appeal was left devoid of subject-matter as on the day of the hearing, the property, pursuant to the statutory Part VIA procedure, was no longer in the mortgagee's ownership.

The point of law raised before the Supreme Court was whether an appeal against a decision of a first instance judge denying an Application to set aside an intended sale of property based on a Type IA notice made under the **Transfer and Mortgage of Immovable Property Law of 1965 to (No.11) 2015**, is left without a subject-matter and is therefore, subject to an unequivocal dismissal on the ground that the mortgagee is, on the day of the appeal hearing, no longer the owner of the immovable property, pursuant to the statutory Part VIA procedure.

The Supreme Court with reference to the relevant case law ruled that an appeal is not left without a subject-matter because the property's divesture has already taken place. After all, what is being challenged by the appeal is the validity of the Type IA notice. The Supreme Court noted that the subject-matter of the appeal is neither the ownership of the mortgaged immovable property nor the conduction of the public auction sale for which the notice serves to inform both the mortgagee and any other interested persons. Its subject-matter is the validity of the Type IA notice, a decision that allowed the divesture to proceed and the mortgagee to lose ownership of his property. The Supreme Court also noted that, by dismissing the appeal on the ground that the property's divesture had already taken place, the Court of Appeal prevented the validity of the procedure from being looked into, in as far as the Type IA notice is concerned, in other words whether the notice should have been set aside.

As a result, the Supreme Court concluded that an appeal against a decision of a first instance judge denying an Application to set aside an intended sale of immovable property on the basis of a Type IA notice made under the **Transfer and Mortgage of Immovable Property Laws of 1965 to (No.11) 2015**, does not render an appeal without a subject - matter nor does it subject it to an unequivocal dismissal on the ground that the mortgagee is, on the day of the appeal hearing, no longer the owner of the immovable property, pursuant to the statutory Part VIA procedure.

The decision of the Court of Appeal was replaced by the decision of the Supreme Court. The appeal shall be heard on the merits by the Court of Appeal.

16 DEC 2024

Civil Appeal No. 114/16 Cooperative Asset Management Company Ltd v. Achilleos a.o 16.12.2024

With the appeal, the appellants challenged the decision of the District Court to approve the costs of the application concerning the registration and enforcement of an arbitral award that had been issued for the amount of €416,269.

The Registrar, considering that it was an originating summons, calculated the costs, in accordance with Order 48, in the scale of €10,000-50,000 and the court of first instance approved this amount.

The appellant contented that it was incorrectly considered that the application was an originating summons and consequently the costs were incorrectly calculated in the scale of €10,000-50,000 instead on the scale of €100,000-500,000. It was argued that the application for registration and enforcement of an award is an application under Order 48 of the Civil Procedure Rules and therefore the costs should be calculated on the basis of the amount of the award. He also argued that the decision of the trial court to approve the costs was without justification.

The Supreme Court examined the nature of the application by amount, i.e. if it was an originating summons with reference to the relevant case law.

It noted that for the purposes of enforcing an arbitral award, it is necessary to register an application for registration and enforcement. The court does not intervene in such proceedings nor does it examine the content of the award.

Dismissing the appeal, it stated that the procedure for registration and enforcement of an arbitral award is raised by an originating summons in accordance with Order 55 and therefore the judgment of the Registrar as to the scale of calculation of the costs of the application was correct.

Regarding the ground of appeal that the decision of the court to approve the costs was without justification it was stated that it is an established legal principle that every decision must be justified. The court of first instance had approved the costs having before it the Registrar's note with the reasoning and reason why the costs were calculated on the scale in question which it adopted. Therefore, its decision was justified.

Appeal was dismissed.

Events & Meetings 2024

31 JAN

Visit of the newly appointed Minister of Justice and Public Order to the Supreme Court.

02 FEB

Online videoconference of Justice E. Efrem, as the judicial representative of the Supreme Court for the CY-2024 Rule of Law Report with the Council of Europe of the European Union.

05 MAR

Participation of Justices L. Demetriadou-Andreou and A. David, as speakers/trainers in a seminar organized by the Cyprus Judicial Training School on the topic: "Judicial Ethics and Conduct." Justice L. Demetriadou-Andreou, addressed issues related to the "Judicial Guide of Conduct." Justice A. David, analyzed the "Non-Binding Guidelines on the Use of Social Media by Judges" issued by the UNODC.

11 MAR

Meeting of the Presidents of the Supreme Constitutional Court and the Supreme Court at the Presidential Palace with the President of the Republic, the Minister of Justice and Public Order, and the Deputy Minister to the President, regarding judicial reform matters.

03 APR

Participation of the President of the Supreme Court in the Administrative Law Conference organized by the Foundation for Parliamentarism and Participatory Democracy of the House of Representatives, and the Academy of the Law Office of the Republic.

05 APR

Visit of the President of the Supreme Court and Justice E. Efrem, to the premises of SPAVO (Association for the Prevention and Handling of Violence in the Family).

09 APR

Presence of Justice E. Efrem at the House of Children, representing the Supreme Court at the press conference on the achievement of the "Crystal Scales of Justice" 2023 award by the Council of Europe. The award was granted to the "Hope for Children" CRC Policy Centre in collaboration with the Cyprus Judicial Training School.

15-17 APR

Visit of Justices E. Efrem and A. David to the Court of Justice of the European Union in Luxembourg, following an invitation from the Cypriot Judges of the Court.



22 APR

Opening address by the President of the Supreme Court at the 1st Conference of the Jean Monnet Centre of Excellence DIGI U, titled "Fight Against Disinformation," organized by the University of Cyprus.

24 APR

Speech by the President of the Supreme Court at the 2nd Annual "Women in Law" Conference, organized by the Cyprus Bar Association.



24-29 MAY

The President of the Supreme Court participated in the centennial celebrations of the Court in Dublin. Additionally, she attended the meeting of the Members of the Council of the Network of the Presidents of the Supreme Judicial Courts of the European Union.





12-14 JUN

The General Assembly of the European Network of Councils for the Judiciary, that had taken place on the 12th until 14th of June 2024 in Rome, has approved the application for membership of the Supreme Judicial Council of Cyprus. Justice L. Demetriadou Andreou had represented the Supreme Judicial Council at the General Assembly.

18 JUN

Ceremony for the Presentation of New Lawyers.

18 JUL

A group of students visited the Supreme Court as part of the "Internship Program at the House of Representatives." The program included an informative lecture by Justice Demetriades Andreou, on the topic "The Mission and Work of the Judiciary in Cyprus: Challenges and Reforms."

17 SEP

Justice Demetriadou Andreou, delivered a welcome address at the event titled "Judicial Proceedings via (Video)Teleconferencing: Practices and Recommendations," organized by the Reform and Civil Procedure Committee of the Cyprus Bar Association.

23 SEP

Opening address by the President of the Supreme Court at the Cyprus Arbitration & Mediation Forum, organized by the Cyprus Arbitration & Mediation Centre.

03-05 OCT

The President of the Supreme Court participated in the Board Meeting of the Judicial Network "Network of the Presidents of the Supreme Judicial Courts of the European Union," as well as in its conference titled "Impact of European Law on National Law and Attractiveness of the Judiciary" in Athens.





07 OCT

Reception at the Supreme Court by the President of the Supreme Court and Justice E. Efrem of a Justice of the Supreme Court of India, the Attorney General of India, and the President of the Commonwealth of India.



08 OCT

Courtesy meeting between the President of the Supreme Court and the Deputy Minister of Migration and International Protection.

11 OCT

Courtesy visit to the President of the Supreme Court by the Ambassador of Qatar, Mr. Yousef Sultan Laram.

29 OCT

Participation of Justice E. Efrem as a trainer in the Workshop for Irish Judges on the Functioning of the Barnahus Model, organized in Dublin, Ireland, within the framework of the Joint EU-Council of Europe project "Support the implementation of the Barnahus project in Ireland".

04 NOV

Visit to the Supreme Court by a delegation from the Law Commission of England and Wales, accompanied by the Commissioner of Legislation.



04-05 NOV

Representation of the Republic of Cyprus by the Chief Registrar and Registrar for the Judiciary at the European E-Justice Conference, "Enhancing European Legal Competitiveness: AI and Advanced Technologies for Better Justice and Legislation," in Budapest, Hungary.



11 NOV

Speech by the President of the Supreme Court during the discussion of the Judicial Service's budget in the House of Representatives.

28-29 NOV

Online participation of Justice A. David in the AECLJ Judges' meeting with members of the DG COMP.

03-04 DEC

The 43rd General Assembly of the CEPEJ Committee for the Efficiency of Justice of the Council of Europe was held in Strasbourg. Representatives from the Member States of the Council of Europe participated in the General Assembly. The Supreme Court was represented by Justice L. Demetriadou Andreou.

04-06 DEC

Participation of Justice E. Efrem as the judicial representative of the Supreme Court at the 25th annual plenary meeting of the CCJE of the Council of Europe in Strasbourg.

09 DEC

Courtesy meeting between the President of the Supreme Court and the Deputy Minister of European Affairs.

12 DEC

Courtesy visit to the President of the Supreme Court by the Ambassador of the Netherlands, Mr. Wouter Plomp.

“Since the 1st of July 2023, the judicial map of Cyprus has changed.”

Katerina Stamatiou

President
of the Supreme Court



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